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25-CIV-04294

MONICA LOUIE, ET AL. VS. HIGHGATE HOTELS, L.P., ET AL.

LINE 5

MONICA LOUIE
HIGHGATE HOTELS, L.P.

WILLIAM J. HOODY
KEVEN STEINBERG

PLAINTIFF MONICA LOUIE'S MOTION TO QUASH OR MODIFY THE DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS SERVED ON KAISER FOUNDATION HEALTH PLAN, INC.

TENTATIVE RULING:

Plaintiff Monica Louie's two substantively similar and unopposed motions for orders quashing or modifying the Deposition Subpoenas for Production of Business Records issued by Defendants Highgate Hotels, L.P.; Grand Prix Belmont LLC; Hyatt Corporation; and Grand Prix Fixed Lessee LLC (hereinafter "Defendants") to Kaiser Permanente Clinic and Hospital — Northern California, 25 North Via Monte, Walnut Creek, California 94598 and Kaiser Foundation Health Plan, Inc. are GRANTED IN PART.

Plaintiff's requests for protective orders limiting future discovery is DENIED as exceeding the scope of the instant motion.

Background

This is a negligence action arising from Plaintiff Monica Louie's fall and subsequent injuries incurred while she and her husband, Plaintiff Michael Louie, were paying residential guests of Defendants' property.

Plaintiff brings the instant motion on the grounds that the Defendants' subpoena to her health provider seeking twelve years of Plaintiff's complete medical records without limitation as to body part, medical condition or relevance to the injuries at issue in this litigation is overbroad and therefore violates her constitutional right to privacy under Article I, Section 1 of the California Constitution, invades the physician-patient privilege (Evidence Code §§ 990-1007), and seeks records that are neither relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Plaintiff's motion requests that the Court modify the subpoena to limit the scope of production to medical records concerning plaintiff's lower legs, including her ankle bones and tendons in the lower leg area, and records reflecting the care, treatment, diagnosis, or evaluation of injuries reasonably related to those body parts. Plaintiff also requests that the Court enter a protective order limiting further discovery consistent with this suggested narrowed scope. The motion is unopposed.

Discussion

Code of Civil Procedure section 1987.1, subdivision (a), authorizes the court to "make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." A plaintiff who is a party to the action may bring a motion to quash or modify a deposition subpoena for production of business records directed to a third party under this section. (Code Civ. Proc. § 1987.1, subd. (b)(1).)

It is well-settled that the state and federal constitutional rights to privacy include one's personal medical records. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856 (*Britt*).) However, it is equally well settled that "the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court." *Id.* at 864 [quoting from *In re Lifschutz* (1970) 2 Cal.3d 415, 435].) The exception has been generally applied only to compel disclosure of medical treatment and communication concerning the very injury or impairment that was the subject matter of the litigation. (*In re Lifschutz* (1970) 2 Cal.3d 415, 434 (*Lifschutz*).)

Where the party filing an action has arguably waived the privacy in their protected or privileged information by filing a lawsuit, the waiver must be construed such that discovery is only permitted of those matters relevant to the party's claims. (*Britt, supra*, 20 Cal.3d at 858-859.) Accordingly, a plaintiff may still assert privacy rights as to physical and mental conditions unrelated to the claimed injury. (*Britt, supra*, at 864.)

Here, plaintiff has placed discrete orthopedic injuries to her ankles and lower legs at issue. There is no evidence that she has waived any privileges as to unrelated conditions that may be documented in her entire Kaiser records. Therefore, to the extent the subpoena seeks such records for conditions unrelated to Plaintiff's ankles and lower legs, the Court finds it invades the physician-patient privilege pursuant to the reasoning set forth in *Lifschutz* and *Britt*. Moreover, the Court finds the breadth of information sought exceeds what is reasonably calculated to lead to admissible evidence regarding Plaintiff's relevant medical damages. (Code Civ. Proc., §§ 2017.010, 2017.020.) Accordingly, the motions to modify the subpoenas and limit scope of production are GRANTED as follows:

Scope is limited to

- Medical records, billing records, claims records, payment records, radiological films, and other documents concerning the care, treatment, diagnosis, prognosis, consultation, and/or findings related to Plaintiff Monica Louie's lower legs, including her ankle bones and tendons in the lower leg area, or records reflecting the care, treatment, diagnosis, or evaluation of injuries reasonably related to those body parts; and
- limited in time from July 21, 2013, to present.

Because the motions are unopposed, the Court declines to address potential arguments which plaintiff speculates could be made by Defendants, including the impact of pre-existing medical conditions or whether the loss of consortium claim potentially expands the scope of discovery.

The Court is aware that the plaintiff has four additional motions to quash pending. The Court on its own Motion hereby sets and Orders an Informal Discovery Conference ("IDC") before the Civil Commissioner in this case. The Court would note the following:

1. Local Rule 3.700(a) states: "In all general civil cases as defined by CRC Rule 1.6(4), parties and non-parties are encouraged to hold an Informal Discovery Conference with the Court prior to filing a motion to compel or any other discovery motion."
 2. Dept. 11 views IDCs as an important prerequisite to the filing and hearing of most if not all discovery motions.
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3. On July 20, 2026, the Court adjudicated two motions to quash but Plaintiff previously filed **four other motions to quash** calendared for November 2, 2026 and January 25, 2026, without holding an IDC.
4. All parties by and through their respective counsel are ordered to participate in the IDC in good faith (see IDC instructions below).
5. **An IDC is now scheduled for August 12, 2026, at 4 p.m.**
6. If the IDC results in a resolution the underlying motions, the moving party should e-file a Notice of Withdrawal or a Stipulation to Vacate (or continue) and Order.

The IDC is with Department 30, the Civil Commissioner. Counsel for the parties shall appear by Zoom video, credentials are below. This Conference is scheduled for 30 minutes but may last an hour.

The parties shall, jointly or separately, email correspondence to the Court at IDC@sanmateocourt.org, and contemporaneously to all parties, an electronic letter of no more than five (5) pages, without attachments, summarizing the discovery dispute(s) within five (5) calendar days of this notice. It shall include on the first line (i) the case name and number, and (ii) the date and time reserved by the parties for the Informal Discovery Conference. All emails to the Court must CC all parties or attorneys of record.

Questions regarding the IDC, including all requests to continue or reset the IDC due to a calendar conflict, should all be directed to the IDC Clerk at IDC@sanmateocourt.org.

IDC ZOOM CREDENTIALS:	
Meeting ID: 161 510 6013 PASSWORD: 987732	Courtroom H

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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LINE 6

MONICA LOUIE
HIGHGATE HOTELS, L.P.

WILLIAM J. HOOS
KEVEN STEINBERG

PLAINTIFF MONICA LOUIE'S MOTION TO QUASH OR MODIFY THE DEPOSITION SUBPOENA FOR PRODUCTION OF
BUSINESS RECORDS SERVED ON KAISER PERMANENTE CLINIC AND HOSPITAL NORTHERN CALIFORNIA

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the
tentative ruling for Line 6.
